LAWYER'S FOR JUSTICE

Where passion would meet dreams
RAJDHANI YUVA SANSAD
A tale of excellence

A Hand Booklet on

2nd National Lawyers' Parliament Festival, 2024

24th November, 2024

Discussion on the Three New Criminal Laws 2023 (Bharatiya Nyaya Sanhita, Bharatiya Nagarik Suraksha Sanhita, Bharatiya Sakshya Adhiniyam)

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ABOUT THE ORGANISERS

Lawyers for Justice is a trust committed to creating awareness and promoting justice in society. Recently, the organization organized a large-scale peaceful demonstration to pay tribute to the victims of violence in West Bengal. To further its cause, a delegation of lawyers also met with then-President of India, Shri Ram Nath Kovind, in May 2022, to discuss important legal matters. One of the trust's most significant initiatives was the organization of the first-ever National Lawyers Parliament Festival on April 29, 2023. This historic event brought together lawyers and law students from across India to engage in meaningful discussions, particularly on the Uniform Civil Code and its implications for the nation's legal system.

Adv. Piyush Gupta
Member, Bar Council of Delhi,
Central Govt. Standing Counsel (High Court of Delhi)
Founder-Trustee, Lawyers for Justice

Adv. KK Tyagi
Founder-Trustee, Lawyers for Justice

Adv. Jai Saini
Co Founder, Rajdhani Yuva Sansad

Adv. Isha Kapoor
Co Founder, Rajdhani Yuva Sansad
Founder, VLAWGISH

Rajdhani Yuva Sansad (RYS) is a platform dedicated to fostering key values among young minds, including the art of speaking calmly, researching well, listening patiently, and being tolerant towards others. Founded in 2017 by Adv. Jai Saini and Adv. Isha Kapoor, both successful law practitioners in New Delhi, RYS aims to build a better nation through engaging education and creating spaces for youth to express their views freely.

Both the organizations have hosted distinguished guests like Hon'ble Union Minister of Law & Justice, Sh. Arjun Ram Meghwal Ji, Hon'ble Speaker of Delhi Legislative Assembly, Sh. Ram Niwas Goel Ji, Sh. Manoj Tiwari, Justice Sachin Datta, Justice Manoj Kumar Ohri, Justice Chandra Dhari Singh, Justice Vikas Mahajan and Adv. Monika Arora, among others.

ABOUT THE CONFERENCE

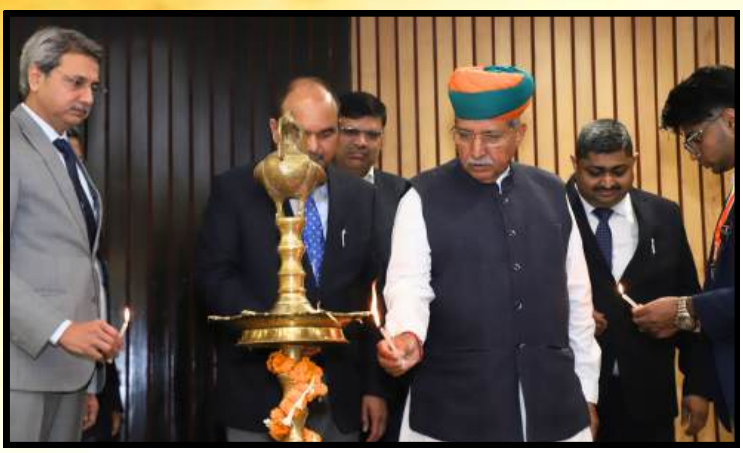
The 2nd National Lawyers' Parliament Festival, a landmark event organized by Lawyers for Justice and Rajdhani Yuva Sansad, convened on 24th November, 2024, at the prestigious India International Centre, Lodhi Estate, Delhi. Bringing together a distinguished assembly of more than 500 legal professionals, emerging law students, and eminent dignitaries, the festival centered on comprehensive deliberations about India's recently introduced criminal laws.

This meticulously curated platform was designed to nurture critical thinking, encourage substantive dialogue, and cultivate a nuanced understanding of complex national challenges.

Guided by the leadership of Adv. Piyush Gupta and Adv. K.K. Tyagi, the founder trustees of Lawyers' for Justice, and the exemplary vision of Co-Founders of Rajdhani Yuva Sansad, Adv. Jai Saini and Adv. Isha Kapoor, the event embodied the profound principle of "संवाद ही हल है" (Dialogue is the only solution).

By championing open, respectful discourse, the festival aspired to transform legal professionals into dynamic agents of constructive societal transformation.

INAUGURAL CEREMONY



The 2nd National Lawyers' Parliament Festival brought together the legal fraternity to discuss specifically on the three new criminal law codes and their analysis from the practical perspective. The conference was graced by the Shri Arjun Ram Meghwal ji, Hon'ble Law Minister who set the tone for a transformative gathering and emphasized the transformative shift from punitive old laws to reformative new ones, citing recent criminal law reforms as steps toward a more inclusive and equitable legal system.

Guests of Honour included Hon'ble Mr. Justice Chandradhari Singh ji, Hon'ble Mr. Justice Vikas Mahajan ji, and Mr. Vijay Kumar ji, Vice Chairperson, Delhi Development Authority whose distinguished presence added profound significance to the inaugural ceremony. He inspired everyone to chase excellence reminding us how our first Prime Minister and the Law Minister shaped the nation. He also stressed on the fact that both the stalwarts belonged to legal profession. Through their dedication to social justice, they set unmatched examples. Their legacy urges us to make our mark in history!

The traditional lamp lighting ceremony illuminated the hall, symbolizing the radiant path of legal wisdom. As a mark of respect for constitutional values, distinguished guests were presented with the original text of the Constitution of India, representing growth, knowledge, as well as the foundational principles of our legal system.

CHIEF GUEST

Hon'ble Union Minister of Law and Justice
Shri Arjun Ram Meghwal

We were honored to have the Hon'ble Union Minister of Law and Justice, Shri Arjun Ram Meghwal Ji, as the Chief Guest for the inaugural ceremony. In his inspiring address, he highlighted the evolution of Indian laws, tracing their roots to key historical events like the Battle of Plassey and the 1857 Revolt. His insights served as a beacon of inspiration, encouraging all present to contribute towards a progressive legal framework.

Adv. Piyush Gupta and Adv. Anil Gupta presenting a token of gratitude to our Honourable Chief Guest.

Adv. Isha Kapoor & Adv. Jai Saini presented an original copy of the Constitution of India to our esteemed Chief Guest.

The Honourable Minister emphasized on the transformative shift, from punitive old laws to reformative new ones, citing recent criminal law reforms as steps toward a more inclusive and equitable legal system.

ESTEEMED DIGNITARIES

Hon'ble Mr. Justice Vikas Mahajan honored the occasion with his presence, adding immense value through his thought-provoking words and vision.

Hon'ble Mr. Justice Chandradhari Singh graced the event with his esteemed presence, inspiring the audience with his profound insights and wisdom.

The presence of Hon'ble Mr. Justice Chandradhari Singh, Hon'ble Mr. Justice Vikas Mahajan, Judges of the Delhi High Court, and Mr. Vijay Kumar, Vice Chairperson, DDA truly elevated the significance of the event, as each of them shared their profound insights, which resonated deeply with the audience. Their words not only inspired the attendees but also set a remarkable example of dedication, professionalism, and wisdom in the fields they represent.

Throughout their addresses, they emphasized on the importance of intellectual engagement, thoughtful discussions, and the pursuit of knowledge, encouraging all participants to approach the forthcoming sessions with a sense of purpose and responsibility.

Presenting a token of gratitude to our Honourable Guest of Honour.

Shri Vijay Kumar Singh Ji, Vice Chairperson, DDA honored us with his esteemed presence.

Presenting a token of gratitude to our Honourable Guest of Honour.

With the conclusion of the inaugural ceremony, the formal debating sessions for the day began, marking the beginning of an intellectually stimulating and enriching day ahead.

SESSION I ON BHARATIYA NAGARIK SURAKSHA SANHITA

- **The panelists for the day included :**

1. ***Prof. Dr. Upma Gautam***
2. ***Ms. Shruti Sharma***
3. ***Adv. Niraj Dubey***
4. ***Adv. Ankit Rana***
5. ***Mr. Gaurav Sharma***

Engaging discussions and dynamic debates

The day commenced with an engaging session on the Bhartiya Nagarik Suraksha Sanhita (BNSS), where participants explored its implications in depth. The ruling side strongly advocated for the new law, emphasizing on its potential to modernize the legal framework and to improve the efficiency of the justice system. On the other hand, the opposition argued that the changes proposed under the BNSS could have been introduced through amendments to the existing laws, without the need for a complete overhaul.

The session witnessed extensive debates and discussions. Some participants pointed out that while the BNSS establishes a basic framework, it still grants considerable judicial discretion which could lead to disparities in sentencing. They stressed on the importance of a well-defined codification of the rights of the accused to ensure fairness and justice in all cases.

Additionally, there were calls to address pressing issues such as illegal land occupation, encroachments of green spaces, and the protection of wildlife and natural habitats. Participants emphasized that these measures are essential for ensuring fair living standards and maintaining ecological balance.

Others highlighted the need for a greater focus on rehabilitating offenders rather than solely punishing them, suggesting that the law should aim to strike a balance between justice and social reintegration.

SUGGESTIONS ON BHARATIYA NAGARIK SURAKSHA SANHITA

In BNSS, to improve justice, bail rules should be changed so undertrial prisoners, especially in non-violent cases, aren't jailed for too long, considering their financial and social conditions. Trials should be faster by setting up more fast-track courts and using plea bargaining. Witnesses need better protection to keep them safe and encourage them to testify. Clear rules should ensure people with mental health issues get proper treatment instead of being jailed.

Ms. Shabana Parween
Advocate

Committees have emphasized the need for standardized sentencing guidelines to ensure consistency and fairness in punishments. While the BNSS provides some framework, it still allows significant judicial discretion, leading to disparities in sentencing. There is a need for clear and comprehensive codification of the rights of the accused to ensure justice, as the BNSS does not provide adequate protection in all cases. Stronger mechanisms for police accountability and oversight have also been recommended to improve transparency and public trust. Judicial delays remain a major concern, and measures to expedite trials are necessary alongside safeguarding judicial independence for a fair justice system. Additionally, prison reforms are needed to address overcrowding, improve facilities, and enhance rehabilitation programs. Expanding access to legal aid for the poor and marginalized is essential to promote equal justice.

Ms. Shilvin Marandi
Advocate

BNSS should clearly define police powers and set up independent bodies to prevent misuse, like arbitrary detentions or searches, and ensure accountability. Police need better training in handling cybercrimes and digital evidence to deal with modern challenges. It should also include stronger protections for women, children, and marginalized groups during police interactions.

The code must set strict timelines to speed up justice for undertrials and victims. It should focus more on rehabilitating offenders, not just punishing them. Provisions are needed to address illegal land occupation, encroachments on green spaces, and the protection of wildlife and natural habitats. This will ensure fair living standards and environmental balance.

Mr. Pankaj Sharma
Advocate

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SUGGESTIONS ON BHARATIYA NAGARIK SURAKSHA SANHITA

The Bharatiya Nagarik Suraksha Sanhita should introduce provisions for the integration of psychological profiling in the investigation and prevention of crimes, particularly in cases of serial offenses, domestic violence, and organized crime.

Mr. Ritik
Advocate

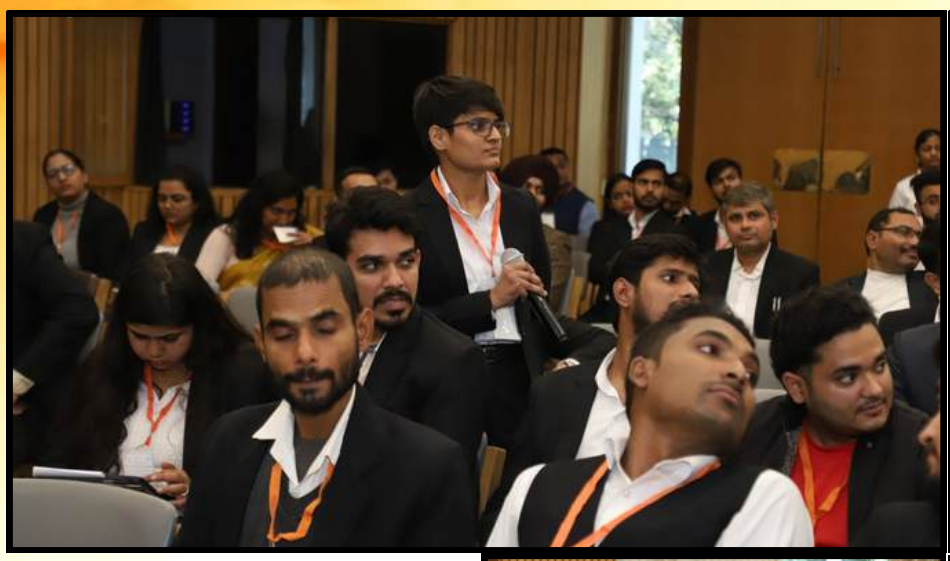
One amendment could be the creation of an independent, transparent, and empowered Police Oversight Commission, tasked with investigating complaints of police misconduct, brutality, and human rights violations. This body should consist of retired judges, independent legal experts, and human rights activists, and must have the authority to recommend disciplinary actions, policy changes, and even criminal charges in extreme cases. This amendment would ensure accountability within law enforcement agencies and address the growing concerns over police misconduct, ensuring that the enforcement of the law is both just and fair.

Mr. Vishal
Advocate

The Bharatiya Nagarik Suraksha Sanhita could be amended to mandate the development of a National Crime and Prevention Strategy, underpinned by data analytics and behavioral science. This strategy would use comprehensive data collected from law enforcement agencies, public surveys, and academic studies to predict crime trends, identify high-risk areas, and deploy resources more effectively

Ms. Divya Singh
Advocate

SESSION II ON BHARATIYA NYAYA SANHITA



The session reflected the enthusiasm and dedication of legal professionals and law students, who deliberated rigorously to analyze the BNS and propose solutions to create a more equitable and effective legal system.

Dynamic debates shaping perspectives on the BNS.

The second session scheduled for the day focused on the Bharatiya Nyaya Sanhita (BNS), 2023, which brought forward a lively and thoughtful discussion. The ruling side strongly supported the new law, emphasizing on its potential to modernize and strengthen the criminal justice system. They argued that the BNS would bring much-needed changes to address current challenges and improve the efficiency of the legal process.

One of the key points raised during the debate was the need for an amendment to penalize the filing of false cases.

Some participants proposed the introduction of a new section in the BNS specifying that any individual found guilty of intentionally filing false allegations, including under provisions like Section 69, should face imprisonment for up to five years and/or a fine. This suggestion aimed to deter frivolous lawsuits and to ensure accountability in the legal system.

Others called for specific provisions to address emerging challenges such as online hate crimes with objective criterion.

Suggestions were also made to reform bail provisions to prevent the prolonged detention of undertrials, particularly in cases involving non-violent offences or where there is no risk of the accused fleeing from the procedure of court.

The session saw a constructive exchange of ideas, with participants deliberating on how to improve the BNS and to make it more inclusive, effective, and responsive to the needs of a rapidly changing society.

SUGGESTIONS ON BHARATIYA NYAYA SANHITA

In Chapter V, Section 63, the term "woman" should be replaced with "woman or transgender" to ensure that the definition of rape is inclusive and provides equal protection to transgender individuals. This change would help promote fairness and equality in the legal system. Additionally, a new section, 302A, should be added in Chapter XVI to address forcible religious conversions. This section would criminalize the use of misrepresentation, undue influence, or fraudulent means to convert an individual's religious beliefs, with a punishment of imprisonment ranging from three to five years.

Mr. Nakul Sharma
Advocate

An amendment should be introduced to penalize the filing of false cases under the Bharatiya Nyaya Sanhita (BNS), 2023, and related laws. A new section could be added specifying that any individual found guilty of intentionally filing false allegations, including under provisions like Section 69, will face imprisonment of up to five years and/or a fine.

Ms. Anjali Punia
Law Student

In BNS, Include specific provisions to address online hate crimes, cyberbullying, and harassment on social media platforms. Strengthen laws to deal with digital hate speech and misinformation that spreads violence or discrimination. Also, Introduce clearer guidelines and penal provisions against police brutality and custodial torture including reforming bail provisions to ensure that undertrials are not kept in custody for prolonged periods, especially in cases where the offense is non-violent or where there is no risk of fleeing.

Ms. Ritu Sharma
Advocate

SUGGESTIONS ON BHARATIYA NYAYA SANHITA

The BNS can be improved by simplifying complaint and appeal processes to enhance accessibility and reduce complexities. Punishments for similar offenses should be standardized for fairness and consistency and mechanisms for reconciliation and victim compensation in minor offenses can reduce the judiciary's burden. Gender-neutral provisions should be implemented to prevent misuse of laws and ensure equality. Child abuse, exploitation, unnatural sexual offenses, and environmental destruction must be treated as serious crimes with strict punishments and corrective measures.

Ms. Jyoti Nambiar
Advocate

The definition of criminal conspiracy needs updating to cover digital conspiracies. When criminals plan on encrypted apps or the dark web, the law should specify how digital planning and coordination constitute conspiracy. The code should clarify that proving digital communication and coordination between accused is enough to establish conspiracy, even without physical meetings.

Ms. Shreya
Law Student

A new concept of "Preventive Criminal Liability" should be introduced for positions of special responsibility. This would create criminal liability for individuals who knowingly create situations highly likely to result in crimes. For instance, if a factory owner deliberately bypasses safety systems to increase profit, they should face criminal charges even before an accident occurs. This shifts focus from punishment after harm to preventing likely crimes.

Mr. Saurabh Rastogi
Advocate

SESSION III ON BHARATIYA SAKSHYA ADHINIYAM

The session highlighted the dedication of legal professionals and law students as they actively discussed the BSA, proposing solutions to enhance the legal system's efficiency and fairness.

Exploring reforms and challenges in the BSA.

The third session scheduled for the day focused on the Bharatiya Sakshya Adhiniyam (BSA), a law aimed at improving the handling of evidence in legal proceedings. The ruling side expressed strong support for the new law, highlighting its potential to enhance the justice system by making evidence handling more streamlined and efficient.

They emphasized that the BSA would address modern challenges in legal processes, especially in cases involving digital evidence.

One of the main points discussed was the need for clear guidelines and the use of advanced technology, such as blockchain, to ensure that digital evidence, particularly in cybercrime cases, is not tampered with. Participants proposed that witness protection programs should be strengthened to provide better safety and anonymity, ensuring that witnesses can testify without fear.

They also suggested that forensic evidence, such as DNA and ballistics, should become a standard part of investigations, to make the investigation procedure more reliable and credible.

Another significant point raised was the need to support vulnerable witnesses, such as children, the elderly, or victims of sexual violence. It was suggested that such witnesses should be encouraged to give testimony in safe spaces or via video to reduce the trauma of appearing in court.

Furthermore, participants recommended clarifying exceptions to the hearsay rule, particularly in cases where direct evidence is difficult to obtain, such as in cybercrimes or organized crime cases. There were also clear suggestions to specify detailed procedure with respect to filing of Section 63 certificate especially the procedure related to obtaining expert's signature and of obtaining hash value of electronic record filed before the court.

SUGGESTIONS ON BHARATIYA SAKSHYA ADHINIYAM

In BSA, We need clear rules and advanced technology like blockchain to make sure digital evidence isn't tampered with, especially in cybercrime cases. Witnesses should be protected with better programs to keep them safe and anonymous during trials. Using forensic evidence like DNA and ballistics should be a regular part of investigations to make them more reliable. Rules requiring extra proof in some cases should be reviewed to avoid unfairly affecting vulnerable groups, especially in cases of sexual violence, domestic issues, or cybercrimes.

Mr. Vineet Kumar
Advocate

The Evidence Act should include clear rules for accepting digital evidence from smartphones, social media, emails, and online platforms, ensuring it is reliable and authentic. Courts should allow modern experts in fields like digital forensics and psychology to testify. Vulnerable witnesses, such as children, the elderly, or victims of sexual violence, should be able to give testimony in safe spaces or via video. Exceptions to the hearsay rule should be clarified to allow important indirect evidence in cases where direct evidence is hard to find, like cybercrimes or organized crime.

Mr. Upendra Kumar
Advocate

The amendment should create special rules for accepting evidence in cyber crimes. Currently, cyber crime evidence follows the same rules as physical evidence, which doesn't work well. The new law should have different standards for proving digital tampering, hacking, or online fraud. For instance, server logs and network traffic data should be valid proof without needing physical documentation, making it easier to prosecute cyber criminals.

Mr. Kanav
Law Student

SUGGESTIONS ON BHARATIYA SAKSHYA ADHINIYAM

In BSA, brain mapping and narco-analysis test results as supporting evidence should be added. Right now, these tests can be done but their results can't be used in court. The new law should allow these results to support other evidence, though not as standalone proof. This would help in complex cases where traditional evidence is hard to find, like in organized crime or terrorism cases.

Mr. Parv
Law Student

For mobile phone evidence, the law needs clear rules about extracting and presenting data. Call records, location data, messages, and app usage should be admissible through a standardized process. Police should be able to submit phone data extracted using approved forensic tools, along with a report explaining what was found. If someone's accused of cyberstalking, their phone's location history and message logs should be valid evidence if extracted by authorized personnel using certified tools.

Ms. Avni
Law Student

There should be detailed provisions for accepting digital financial evidence. This means banking transactions, UPI payments, mobile wallet transfers, and cryptocurrency movements should be valid proof without requiring endless paperwork. The law should specify that certified records from RBI-regulated financial institutions are automatically admissible.

Mr. Ankit Rana
Advocate

VALEDICTORY CEREMONY

The ceremony was honored by the presence of Hon'ble Mr. Justice Manoj Kumar Ohri, Judge, High Court of Delhi. Guests of Honour included Shri Chetan Sharma, Additional Solicitor General of India, Ms. Aman Preet Passy, IRS officer, and our Special Guests Prof. Dr. Seema Singh, Professor, Faculty of Law, Delhi University and Sr. Adv. KK Manan, former chairman of the Bar Council. Their distinguished presence added substantial value to the proceedings.

During the ceremony, original text of the Constitution of India and planters were presented to the distinguished guests. These offerings symbolized the principles of democarcy, legal growth, constitutional heritage, and the nation's enduring commitment to justice.

The valedictory session marked successful culmination of the 2nd National Lawyers' Parliament Festival, reaffirming the legal fraternity's dedication to constitutional values and professional excellence.

Recognising the Winners

CHIEF GUEST

Hon'ble Mr. Justice Manoj Kumar Ohri ji, Judge, Delhi High Court gracing the occasion with his distinguished presence.

We were honored to have Hon'ble Mr. Justice Manoj Kumar Ohri as the Chief Guest for the valedictory ceremony. In his insightful address, Sir discussed the intricacies of the legal profession and emphasized that the new criminal laws hold the potential to bring significant benefits, provided we approach them with an open mind, give them a fair chance, and strive to understand their objectives and implications.

Adv. Piyush Gupta, Founder Trustee of Lawyers for Justice, presenting a token of gratitude to our honourable Chief Guest.

Adv. KK Tyagi ji, founder of Lawyers For Justice presenting a token of gratitude to our esteemed Chief Guest.

Hon'ble Mr. Justice Manoj Kumar Ohri, along with Aditional Solicitor General of India, Shri Chetan Sharma.

Justice Ohri appreciated the organizers for conceptualizing and executing such a significant conference and applauded the participants for their enthusiastic engagement and substantive contributions to the legal discourse.

ESTEEMED DIGNITARIES

Shri Chetan Sharma Ji, Additional Solicitor General of India, honored the occasion with his presence, adding immense value through his thought-provoking words and vision.

Ms. Aman Preet Passy ji graced the event with her esteemed presence, inspiring the audience with her profound insights and wisdom.

The esteemed presence of distinguished Guests of Honour, Shri Chetan Sharma, Additional Solicitor General of India, and Ms. Aman Preet Passy, IRS Officer, added great value to the occasion, as they shared their insightful perspectives and experiences with the audience. Their words not only inspired the attendees but also highlighted the importance of integrity, dedication, and the pursuit of justice in their respective fields.

The conference was further enriched by the special presence of Prof. Dr. Seema Singh, Professor, Faculty of Law, Delhi University and Sr. Adv. K.K. Manan Sir, Former Chairman, BCD whose contributions and expertise provided valuable guidance to all present. Their wisdom and encouragement offered a sense of direction for the future endeavors of the participants.

Prof. Dr. Seema Singh honored the event with her esteemed presence, enriching the audience with her unparalleled expertise and thought-provoking perspectives.

Sr. Adv. K.K. Manan Sir graced the occasion with his distinguished presence, leaving the audience inspired by his vast legal acumen and profound insights.

With the conclusion of the valedictory ceremony, the event came to a close, marking the end of a successful and enlightening experience for the legal fraternity.

SECRETARIAT

Mr. Jatin Kapoor, *Head of Operations, RYS*

Mr. Parv Narendra, *Secretary General*

Ms. Avni Chauhan, *Deputy Secretary General*

Ms. Shreya Kapoor, *Deputy Secretary General*

Ms. Tanisha Gupta, *PR Head*

Mr. Kanav Sharma, *USG Public Affairs*

Mr. Arsh Khan, *Secretariat Member*

Ms. Simran Kaur, *OC Head*

Organising Committee Members

R-L: Kushagra Verma, Aakriti Aggarwal, Keshav Singhal, Shiv Anand, Raman Gupta, Shonakshi Gupta

2nd National Lawyers' Parliament Festival 2024